

#	Case Name	Tentative																																													
2024-01374602		§1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Melton Decl. ¶¶ 10-13vv [description of services performed]; ¶¶20-21 [justification for hourly rates sought], ¶21 [timekeeping procedures]; and Ex. 20 [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by the following timekeepers: <table><tr><th>Timekeeper</th><th>Role</th><th>Rate</th><th>Hours</th><th>Total</th></tr><tr><td>Dana I. Castruita, Esq.</td><td>Former Associate</td><td>\$400</td><td>1.5</td><td>\$600</td></tr><tr><td>Luis Aguirre, Esq.</td><td>Former Associate</td><td>\$475</td><td>0</td><td>\$0</td></tr><tr><td>Kimya Assadkhan</td><td>Former Associate</td><td>\$250</td><td>1.5</td><td>\$375</td></tr><tr><td>Matthew T. Goethals, Esq.</td><td>Attorney</td><td>\$500</td><td>0.6</td><td>\$300</td></tr><tr><td>Shawna M. Melton, Esq.</td><td>Partner</td><td>\$650</td><td>75</td><td>\$48,750</td></tr><tr><td>David Womack</td><td>Paralegal</td><td>\$200</td><td>13.4</td><td>\$2,680</td></tr><tr><td>Rebecca Goethals</td><td>Paralegal</td><td>\$225</td><td>25.9</td><td>\$5,827.50</td></tr><tr><td></td><td></td><td></td><td>92.9</td><td>\$58,532.50</td></tr></table> Plaintiffs have adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market, subject to the court’s further qualification discussed below. The court generally credits the accuracy of Moving Parties’s time records. (See <i>City of Colton v. Singletary</i> (2012) 206	Timekeeper	Role	Rate	Hours	Total	Dana I. Castruita, Esq.	Former Associate	\$400	1.5	\$600	Luis Aguirre, Esq.	Former Associate	\$475	0	\$0	Kimya Assadkhan	Former Associate	\$250	1.5	\$375	Matthew T. Goethals, Esq.	Attorney	\$500	0.6	\$300	Shawna M. Melton, Esq.	Partner	\$650	75	\$48,750	David Womack	Paralegal	\$200	13.4	\$2,680	Rebecca Goethals	Paralegal	\$225	25.9	\$5,827.50				92.9	\$58,532.50
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		Cal.App.4th 751, 784-785.) Reasonable hourly compensation does not include inefficient or duplicative efforts, aka "padding." (<i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal. 4th 553, 579-580) The court finds that the records include duplicative/overstaffed billing relative to the work involved in bringing this case to a resolution. The fee award has been reduced to reflect a number of hours reasonably spent to complete the tasks involved in this lawsuit, where no pleadings challenges, or dispositive motion practice were required. (See <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [no abuse of discretion where trial court reduced fee award to account for duplicative and unnecessary billing].) The time Moving Parties claim to have spent drafting the Complaint, preparing routine written discovery requests and routine motions to compel discovery are excessive and not reasonably necessary to complete these tasks. Having reviewed the billing records in detail, it appears to the court that either (1) attorney Melton's hourly rate at \$650 per hour is excessive for the matters billed (ex: drafting discovery, correspondence, and motions) or (2) the hours spent are too high for someone performing at a partner's level and charging \$650 per hour. For example, in August 2024, attorney Melton spent over 17 hours on discovery matters. The court applies its own knowledge of these types of matters, and own experience in litigation to assess these requests. As a result, and to address attorney Melton's hours and rate, the court has reduced the hours requested and applied a \$650 rate for this timekeeper. The hours reasonably expended for purposes of the lodestar have been adjusted accordingly. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above. Plaintiffs' memorandum of costs seeks recovery of reasonable and necessary costs and the full request of \$4,584.41 is GRANTED. The court orders this case dismissed without prejudice. Upon defendants' payment of outstanding monies owed, plaintiffs can move to dismiss with prejudice Plaintiffs shall give notice of this ruling.

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61.		
62.	National Funding, Inc. v. Great Caterers LLC 2025-01527909	Plaintiff National Funding, Inc.'s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment. Plaintiff's Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25. Defendants' evidentiary objection No. 12 is OVERRULED based on this ruling. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objection Nos 2-5, 7-10, and 13 are SUSTAINED. Defendants' other evidentiary objections are OVERRULED. Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff's burden when moving for summary judgment. It provides: "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto." "[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts